

INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT III

Law of Copyright

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT III — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Meaning, nature, history & socio-economic significance of copyright
- Copyright Act, 1957 — salient features, subject matter, neighbouring rights
- Idea-Expression Dichotomy
- Rights of authors and owners
- Assignment and licensing of copyright
- Collective management of copyright
- Infringement — criteria, exceptions, Fair Use/Fair Dealing doctrine
- Regulatory authorities under the Act
- Civil and criminal remedies for infringement

What is NOT in This Unit

- International copyright treaties (Paris, Berne, TRIPS) → Unit II
- Trade Marks Act, Designs Act → Unit IV
- Patents Act → Unit V
- GI Act, PPVFR Act → Unit I / IV / V

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Copyright Infringement — Criteria, Exceptions, Remedies	B	★★★★★★
Idea-Expression Dichotomy	B	★★★★★★
How Copyright Protects Economic & Moral Rights	B	★★★★★★
Copyright Infringement (short note)	A	★★★★★★
Treaties on Copyright / Anton Piller Order	A	★★★★★
Fair Use / Fair Dealing doctrine	A	★★★★★
Rights of Authors and Owners	A	★★★★★
Teacher using copyrighted notes (Problem)	C	★★★★★★
Blog compiled into book without permission (Problem)	C	★★★★★★
Internet webcasting cricket score (Problem)	C	★★★★★

1234 Critical Numbers — Unit III

- Copyright Act — 1957 (India) | Amended significantly in 2012
- General copyright term — Life of author + 60 years (India)
- Anonymous/pseudonymous works — 60 years from publication
- Government works — 60 years from publication
- Cinematograph films / sound recordings — 60 years from publication

- Photographs — 60 years from publication
- Berne minimum term — Life + 50 years (India gives more)
- Copyright Board replaced by — Intellectual Property Appellate Board (IPAB) — now Commercial Courts
- Section 13 — Subject matter of copyright (works protected)
- Section 14 — Meaning of copyright (exclusive rights)
- Section 17 — First owner of copyright
- Section 19 — Assignment of copyright (must be in writing)
- Section 30 — Licence (voluntary)
- Section 31 — Compulsory licence
- Section 51 — Infringement of copyright
- Section 52 — Acts NOT constituting infringement (exceptions/fair dealing)
- Section 55 — Civil remedies (injunction, damages, accounts)
- Section 63 — Criminal offence (imprisonment up to 3 years + fine)
- Anton Piller Order — search and seizure without notice (civil)

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. ~200–250 words each. Time: 5–7 min each.

A1. Copyright Infringement ★★★★★

Definition: Copyright infringement occurs when any person, without licence from the owner or without statutory authorisation, does anything that is the exclusive right of the copyright owner. Governed by Section 51, Copyright Act 1957.

Criteria for Infringement (Section 51):

- Does any act that only the copyright owner has the exclusive right to do (Section 14)
- Permits any place for profit to be used for communication of infringing work
- Imports infringing copies into India (except for private/domestic use)
- Sells, hires, offers for sale or hire any infringing copy

 **THREE-PART TEST FOR INFRINGEMENT:** (1) Plaintiff owns valid copyright; (2) Defendant copied the work; (3) Copying was of protected expression (not mere idea). ALL THREE must be proved.

Types of Infringement:

- Primary infringement — direct copying/reproduction
- Secondary infringement — selling, hiring, distributing infringing copies
- Online infringement — uploading/streaming without licence

 **Example:** B copies A's novel and sells printed copies commercially — primary infringement. C buys those copies knowing they are infringing and resells them — secondary infringement.

§ R.G. Anand v. M/s Delux Films (1978 SC) — Landmark: 'If the viewer, after reading/seeing both works, gets a feeling that one is a copy of the other, there is infringement.' Idea alone not protected — but expression is.

§ MRF Ltd v. Metro Tyres Ltd (Delhi HC) — substantial similarity in advertisement constituted infringement.

 **TIP:** Exam formula: Infringement = Copying of **EXPRESSION** (not idea) + Without licence + Of protected work. Mere similarity of theme/plot = NOT infringement. Substantial copying of expression = infringement.

A2. Fair Use / Fair Dealing Doctrine ★★★★★☆

Definition: Fair dealing is a statutory exception under Section 52, Copyright Act 1957, that permits use of copyrighted material without the owner's permission for specified purposes, provided the use is fair and does not harm the legitimate interests of the copyright owner.

Section 52 — Permitted Acts (Key Exceptions):

- Fair dealing for private use including research (Section 52(1)(a))
- Fair dealing for criticism or review (Section 52(1)(a)(ii))
- Fair dealing for reporting current events (Section 52(1)(b))
- Reproduction by teacher in the course of instruction (Section 52(1)(i))
- Performance in educational institution before audience of staff/students (Section 52(1)(j))
- Recording by broadcaster for transient/incidental use (Section 52(1)(b)(ii))
- Reproduction for judicial proceedings (Section 52(1)(c))

🟡 **FOUR FACTORS FOR FAIRNESS** (US-inspired, adopted by Indian courts): (1) Purpose & character of use (commercial vs. non-profit), (2) Nature of copyrighted work, (3) Amount/substantiality of portion used, (4) Effect on potential market for the work.

📌 Example: A professor photocopies one chapter of a textbook for distribution to 30 students as course material — likely fair dealing under Section 52(1)(i). But photocopying the entire book = NOT fair dealing.

⚖️ *Academy of General Education v. B. Malini Mallya (2009 Karnataka HC)* — Performance of copyrighted work in an educational institution for non-commercial purpose held to be fair dealing.

⚖️ *Super Cassettes v. Hamar Television (Delhi HC 2011)* — News channel using film clips in reporting held fair dealing for current events.

💡 **TIP:** India uses 'fair dealing' (closed list in Section 52) NOT the open-ended US 'fair use' doctrine. Important distinction — Indian fair dealing is **NARROWER**. Only specified purposes qualify.

A3. Rights of Authors and Owners (Economic & Moral Rights) ★★★★★

Definition: Copyright confers two categories of rights on authors/owners: (1) Economic Rights — the exclusive rights to exploit the work commercially; and (2) Moral Rights — the personal, non-transferable rights protecting the author's personality and integrity in the work.

Economic Rights (Section 14):

- ▶ Right of reproduction — copying in any material form
- ▶ Right of communication to the public — broadcasting, streaming, public performance
- ▶ Right of adaptation — translation, dramatisation, arrangement
- ▶ Right of distribution — sale, hire, offer for sale
- ▶ Right of rental — lending of films, software
- ▶ Right of translation

Moral Rights (Section 57):

- ▶ Right of paternity — right to claim authorship; right to prevent others from claiming authorship
- ▶ Right of integrity — right to object to distortion, mutilation or modification of the work that would prejudice the author's honour/reputation

🟡 **KEY RULE — MORAL RIGHTS (Section 57):** Moral rights **CANNOT** be assigned or waived — they remain with the **AUTHOR** even after economic rights are transferred to publisher/producer. Moral rights survive the author's death and vest in legal heirs.

📌 Example: A film director assigns all economic rights to a production house. Years later, the producer digitally alters the film. The director can still exercise moral rights (right of integrity) under Section 57 to object to the distortion — even though he has no economic rights left.

⚖️ *Amar Nath Sehgal v. Union of India (2005 Delhi HC)* — Landmark moral rights case. UOI demolished a mural by sculptor Sehgal without his consent. Court upheld author's right of integrity under Section 57 and awarded Rs. 5 lakh damages + ordered return of fragments.

💡 **TIP:** Moral rights = **INALIENABLE** (cannot be sold/transferred). Economic rights = **ASSIGNABLE**. Section 57 = Moral rights. Section 14 = Economic rights. *Amar Nath Sehgal* = the moral rights case to cite.

A4. Assignment and Licensing of Copyright ★★★★★

Definition: Assignment is the transfer of ownership of copyright (or any of its exclusive rights) from the owner to another person. Licensing is the grant of permission to use copyright without transferring

ownership. Both are governed by Sections 18–31, Copyright Act 1957.

Assignment (Sections 18–19):

- Copyright owner may assign all or any of the rights (Section 18)
- MUST be in writing and signed by the assignor or authorised agent (Section 19(1))
- Must specify: period, territorial extent, amount of royalty (Section 19)
- If period not specified — deemed 5 years; if territory not specified — deemed India (Section 19(5),(6))
- If assignee fails to exploit within 1 year — assignment deemed lapsed (Section 19A)

Licensing (Sections 30–31):

- Voluntary licence — owner grants licence in writing (Section 30)
- Compulsory licence — Copyright Board/IPAB can grant if owner refuses or terms unreasonable (Section 31)
- Statutory licence for cover versions — after 5 years of original sound recording (Section 31C)
- Licence for broadcasting — Section 31D (introduced in 2012 amendment)

ASSIGNMENT vs LICENCE: Assignment = transfer of ownership (assignee becomes owner). Licence = permission only (licensor remains owner). Assignment must be written. Licence can be oral (but writing preferred).

 Example: A music composer assigns copyright in her songs to a record label — the label becomes the copyright owner. She then grants a licence to a radio station to broadcast the songs — she remains the owner, the radio station just has permission.

 *Video Master v. Nishi Productions (Bombay HC 1998)* — Oral assignment held invalid under Section 19; assignment of copyright must be in writing.

 **TIP: Exam numbers: Assignment period default = 5 years; territory default = India only; Assignee must exploit within 1 year (Section 19A). These specific numbers are commonly tested.**

A5. Collective Management of Copyright ★★★★★

Definition: Collective management organisations (CMOs) are bodies that manage copyright on behalf of large numbers of authors/rights holders — collecting royalties, granting licences, and distributing proceeds. They are essential for rights that would be impractical to enforce individually (e.g., music played in restaurants, radio broadcasts).

Key Points:

- CMOs act as agents or trustees for rights holders
- Grant blanket licences to users (broadcasters, hotels, restaurants) covering entire repertoire
- Collect and distribute royalties to member creators
- India's major CMO: IPRS (Indian Performing Right Society) — for musical works
- PPL (Phonographic Performance Limited) — for sound recordings
- Authors Guild of India, SCRIPT (for screenwriters)
- Regulated under Copyright Act and Registration of Copyright Societies (Section 33)
- Copyright society must be registered with Central Government (Section 33(3))

WHY CMOs MATTER: No individual musician can monitor and collect royalties from every restaurant, hotel, and radio station playing their song. CMOs solve this by acting collectively — they are the practical enforcement arm of copyright for performing rights.

 Example: When a hotel plays background music in its lobby, it cannot negotiate with every composer individually. Instead, it gets a blanket licence from IPRS and PPL, paying one annual fee

covering all their member works.

⚖️ *IPRS v. Eastern Indian Motion Picture Association (1977 SC)* — Established that IPRS has right to collect royalties on behalf of music composers from film producers for public performance rights.

💡 *TIP: Section 33 = Registration of copyright societies. IPRS = musical works. PPL = sound recordings. Remember: CMOs solve the 'transaction cost problem' of individual enforcement.*

A6. Anton Piller Order ★★★★★

Definition: An Anton Piller Order (now called a 'Search Order' in UK) is an ex parte civil court order that allows the plaintiff to enter the defendant's premises, search for, inspect, and seize infringing material — WITHOUT prior notice to the defendant. It is a powerful civil remedy against copyright infringement named after the case *Anton Piller KG v. Manufacturing Processes Ltd (1976)*.

Key Features:

- Granted EX PARTE — defendant has NO notice; element of surprise is essential
- Designed to prevent destruction of evidence by the infringer
- Plaintiff must be accompanied by a solicitor/advocate when executing the order
- Defendant cannot be forced to allow entry — but refusal = contempt of court
- Must be accompanied by an injunction restraining defendant from destroying evidence

Conditions for Grant (from Anton Piller case):

- Extremely strong prima facie case of infringement
- Actual or potential damage must be very serious
- Clear evidence that defendant possesses infringing documents/articles
- Real possibility that defendant would destroy evidence if notice given

📌 **REMEMBER: Anton Piller = Search and Seizure WITHOUT notice. Mareva Injunction = Freezing of assets WITHOUT notice. Both are ex parte emergency civil remedies in IP cases.**

🔴 Example: A film producer discovers a piracy ring is duplicating DVDs of an unreleased film from a warehouse. An Anton Piller Order allows the producer to raid the warehouse with a court officer before the pirates can destroy the masters.

⚖️ *Anton Piller KG v. Manufacturing Processes Ltd (1976) UK CA* — Origin case. Court authorised inspection and seizure of design drawings being used by defendant to manufacture competing products.

⚖️ *Taj Television v. Rajan Mandal (Delhi HC 2002)* — Anton Piller Order granted in India for cable TV piracy case; Indian courts have adopted this remedy.

💡 *TIP: Anton Piller = 4 conditions: (1) Strong prima facie case, (2) Serious damage, (3) Evidence possessed by defendant, (4) Risk of destruction. The ORDER = search. The result = seizure. Different from criminal search — it's a CIVIL remedy.*

A7. Neighbouring Rights ★★★★★

Definition: Neighbouring rights (also called related rights) are rights related to copyright that protect those who contribute to the creation and dissemination of works — specifically performers, producers of phonograms (sound recordings), and broadcasting organisations — who are not the original authors but play important roles in bringing works to the public.

Three Categories of Neighbouring Rights:

- Performers' Rights: Actors, singers, musicians, dancers — right to authorise fixation, broadcasting,

and communication of their performances (Section 38, 38A Copyright Act)

- Producers' Rights: Producers of sound recordings (phonograms) — right to reproduce, sell, hire, communicate sound recordings (Section 14(e))
- Broadcasters' Rights: Broadcasting organisations — right to re-broadcast, record, communicate broadcasts (Section 37)

■ **DURATION OF NEIGHBOURING RIGHTS: Performers' Rights = 50 years from performance. Sound Recording = 60 years from publication. Broadcasting Rights = 25 years from broadcast. (India Copyright Act)**

📌 Example: A singer performs at a concert. The concert promoter records the performance. The singer has performers' rights over the performance; the record company has producers' rights over the recording; the TV channel broadcasting it has broadcaster's rights. THREE separate rights from ONE event.

🎵 *Fortune Films v. Dev Anand (Bombay HC 1979) — Performer's right to control exploitation of performance recognised even before 1994 amendment explicitly codified performers' rights.*

💡 *TIP: Neighbouring rights ≠ Copyright. Copyright = original creator (author, composer). Neighbouring rights = performers, producers, broadcasters. Berne Convention covers copyright; Rome Convention (1961) and WPPT (1996) cover neighbouring rights.*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. ~600–750 words. Time: 20–25 min each.

B1. Idea-Expression Dichotomy in Copyright Law & Its Impact on Scope of Protection

Introduction

The idea-expression dichotomy is the foundational principle of copyright law that distinguishes between unprotectable ideas (which belong to the public domain) and protectable expression (which belongs to the author). This doctrine resolves the fundamental tension between encouraging individual creativity (through exclusive rights) and enabling the free flow of information and knowledge (by keeping ideas available to all). Without this distinction, copyright would become a monopoly over thought itself — a result incompatible with freedom of expression, scientific progress, and democratic discourse.

 **THE GOLDEN RULE:** Copyright protects **EXPRESSION**, not **IDEAS**. The idea belongs to everyone. The specific, original expression of that idea belongs to the author.

1. Statutory Basis

In India, the idea-expression dichotomy is not explicitly codified but is firmly embedded in the definition of 'work' and 'copyright' in the Copyright Act, 1957:

- Section 13: Copyright subsists in 'original literary, dramatic, musical and artistic works' — the word 'original' implies the expression must originate from the author
- Section 2(y): 'Work' means any work in which copyright subsists — implying only the concrete expression constitutes the protectable 'work'
- Internationally, TRIPS Article 9(2) explicitly states: 'Copyright protection shall extend to expressions and not to ideas, procedures, methods of operation or mathematical concepts as such.'
- WCT Article 2 similarly confirms: ideas, procedures, methods of operation, mathematical concepts not protected by copyright

2. The Doctrine Explained

The dichotomy operates on a spectrum. At one end are pure ideas (completely unprotectable); at the other end are specific, detailed expressions (fully protectable). In between lies a merger zone where idea and expression blend — this is where courts apply the 'merger doctrine.'

Level	Status	Example
Pure idea	Not protected	'Write a story about star-crossed lovers'
Theme / plot outline	Not protected	'Romeo & Juliet — two feuding families, tragic end'
Detailed plot structure	Partially protected	Specific sequence of scenes, chapters
Specific expression	Fully protected	The actual sentences, dialogue, descriptions

3. The Merger Doctrine

When an idea can only be expressed in one or very few ways, the idea and expression are said to 'merge' — and copyright does not protect the expression (to avoid monopolising the idea itself).

 Example: The idea of a calendar showing dates cannot be expressed in many different ways — the

basic grid layout of a calendar cannot be copyrighted because the idea and expression have merged.

⚖️ *Baker v. Selden (1879 US SC)* — *Seminal case. Book explaining a bookkeeping system published; a competitor used the same accounting forms. Held: The idea of the accounting system cannot be copyrighted; only the specific literary expression in the book is protected. Anyone can use the system.*

4. The Scenes à Faire Doctrine (Related Principle)

Standard, stock elements that naturally flow from a given genre or setting are not protectable — because they are necessary elements of any similar work (related to idea-expression dichotomy).

🔴 Example: In a war novel, scenes of training, battle chaos, comradeship, and death are standard genre elements (scenes à faire) — they cannot be copyrighted. Only specific, unique expression of these scenes can be protected.

5. Application in India — Key Cases

⚖️ *R.G. Anand v. M/s Delux Films (1978 SC)* — *THE LEADING INDIAN CASE. Plaintiff wrote a play about communal harmony between Hindus and Sikhs. Defendant made a film on the same theme. SC held: An idea, subject matter, theme, or historical fact cannot be copyrighted. If a viewer, after seeing both works, feels that one is a copy of the other — infringement. But similarity of theme/idea alone is not infringement. The test is substantial similarity of expression.*

⚖️ *Zee Telefilms v. Sundial Communications (2003 Bombay HC)* — *Concept note for a TV show held protectable as expression, not mere unprotectable idea — distinction between a bare concept (idea) and a developed, detailed treatment (expression).*

⚖️ *Anil Gupta v. Kunal Dasgupta (2002 Delhi HC)* — *Reality show concept: 'Swayamvar' — bare idea not protected; but if the detailed format, structure, characters, and episodes are developed in writing, the expression is protected.*

6. Impact on Scope of Copyright Protection

- Narrows protection: Prevents copyright from becoming a monopoly on knowledge or culture
- Widens public domain: Ideas, facts, data, historical events remain available for all to use
- Prevents over-protection: Functional works (legal forms, accounting systems) — expression protected but functional method is not
- Enables creativity: Second authors can write on same theme/subject as long as they use their own expression
- Digital context: Computer programs — algorithms (ideas) not protected; specific code (expression) is

🟡 **PRACTICAL IMPACT:** Two authors can write about the French Revolution (same idea). Neither can copy the other's specific sentences, descriptions, or analysis (protected expression). History belongs to all; specific prose belongs to the author.

Conclusion

The idea-expression dichotomy is copyright law's great balancing act. It incentivises authors by protecting their unique expression while ensuring that the building blocks of knowledge — ideas, facts, concepts, and methods — remain freely available for all to build upon. In India, this principle is deeply embedded in the Copyright Act, 1957 and has been robustly applied by courts from *R.G. Anand* to *Zee Telefilms*. As copyright confronts new challenges — AI-generated content, data compilations, software — the idea-expression dichotomy remains the lodestar for determining what can and cannot be owned.

🟡 **CONSTITUTIONAL LINK:** The idea-expression dichotomy aligns with Article 19(1)(a) (freedom of speech and expression) — copyright should not restrict free discourse. The SC in *R.G. Anand* recognised this balance.

B2. Copyright Infringement — Criteria, Exceptions & Remedies

Introduction

Copyright infringement is the unauthorised exercise of any right exclusively belonging to the copyright owner. As creative content migrates to digital platforms and global distribution becomes instantaneous, copyright infringement has become both more pervasive and more economically damaging. The Copyright Act, 1957 provides a comprehensive regime — defining infringement under Section 51, exempting certain uses under Section 52 (fair dealing), and providing civil remedies under Section 55 and criminal penalties under Section 63.

1. Criteria for Copyright Infringement (Section 51)

Infringement occurs when any person, without a licence from the owner or without statutory authority:

- Does anything that is the copyright owner's exclusive right under Section 14 (reproduction, communication, adaptation, etc.)
- Permits any place of profit to be used for communication of infringing work to the public
- Sells or lets for hire, or offers for sale/hire, any infringing copy
- Distributes infringing copies for trade or to such an extent as to prejudice the owner
- Imports infringing copies into India (other than private/domestic use)

■ **THREE-PART TEST:** (1) Valid copyright owned by plaintiff; (2) Defendant copied/reproduced the work; (3) Copied material is protected **EXPRESSION** (not mere idea). Substantial similarity of expression = key test.

2. Key Case Law on Infringement Criteria

§§ *R.G. Anand v. M/s Delux Films (1978 SC)* — If, after seeing both works, a viewer feels one is a copy of the other, infringement is established. Theme/idea alone NOT protected.

§§ *Eastern Book Co. v. D.B. Modak (2008 SC)* — Copy-edited judicial opinions: Court held that minimal creativity (selection and arrangement) in headnotes was protectable; but bare factual reproduction of judgments (government works under Section 52) is not infringement.

§§ *MRF Ltd v. Metro Tyres (Delhi HC)* — Substantial similarity in advertisement film constituted infringement of cinematograph film copyright.

3. Exceptions — Acts NOT Constituting Infringement (Section 52)

Section 52 provides a closed list of permitted acts that do NOT amount to infringement (India's fair dealing provisions):

Exception	Section	Condition
Private use / research	52(1)(a)	For personal study, not commercial
Criticism or review	52(1)(a)(ii)	Sufficient acknowledgment required
Reporting current events	52(1)(b)	News reporting — press, broadcast
Judicial proceedings	52(1)(c)	Use in courts, tribunals
Teaching / instruction	52(1)(i)	By teacher in educational institution
Performance in school/college	52(1)(j)	Before audience of staff & students
Reproduction by libraries	52(1)(n)	For preservation — not for sale
Cover versions (sound recording)	31C	After 5 years; royalty payable

■ **INDIA vs USA:** India uses **CLOSED LIST** fair dealing (Section 52) — only listed purposes qualify. USA uses **OPEN** fair use (4-factor test). Indian fair dealing is **NARROWER** and more certain but

less flexible.

4. Civil Remedies for Infringement (Section 55)

- Injunction — restraining order to stop infringement (most important remedy — can be interim)
- Damages — compensation for loss suffered by plaintiff
- Account of profits — defendant must account for and pay profits made from infringement
- Delivery up — delivery of all infringing copies to plaintiff for destruction
- Anton Piller Order — ex parte search and seizure order to preserve evidence (civil)
- Mareva Injunction — freezing of defendant's assets to prevent dissipation

INNOCENT INFRINGEMENT RULE (Section 55(2)): If defendant was not aware that copyright subsisted in the work, plaintiff is only entitled to injunction — NOT damages. This protects good-faith defendants.

5. Criminal Remedies (Section 63)

- Offence: Knowingly infringing or abetting infringement of copyright
- Punishment: Imprisonment minimum 6 months — maximum 3 years + Fine min Rs. 50,000 — max Rs. 2,00,000
- Enhanced penalty for second offence (Section 63A): Minimum 1 year imprisonment
- Search and seizure: Police can seize infringing copies (Section 64) without warrant
- Criminal offence does NOT require proof of financial loss — mere act of infringement suffices

CIVIL vs CRIMINAL: Civil (Section 55) — needs proof of damage; remedies = injunction + damages. Criminal (Section 63) — no need to prove damage; remedy = imprisonment + fine. Both can be pursued simultaneously.

6. Regulatory Authorities

- Registrar of Copyrights — maintains Register of Copyrights; Section 44
- Copyright Board — adjudicated licensing disputes; replaced by IPAB (Intellectual Property Appellate Board) in 2017; IPAB abolished 2021, jurisdiction transferred to High Courts/Commercial Courts

⚖️ *Super Cassettes Industries v. Hamar Television Network (Delhi HC 2011)* — Broadcaster's use of copyrighted music without licence; statutory licence under Section 31D required; injunction granted.

⚖️ *Tips Industries v. Wynn Music (Bombay HC 2019)* — Streaming service cannot rely on Section 31D (broadcasting licence) for on-demand streaming — Section 31D applies only to radio/TV broadcast, not internet streaming.

Conclusion

Copyright infringement law under the Copyright Act, 1957 reflects a carefully calibrated balance: robust protection of authors' rights through civil and criminal remedies, while ensuring that education, research, criticism, and journalism can engage freely with copyrighted material through the fair dealing exceptions. The digital era has strained these boundaries — particularly around online streaming, AI-generated content, and user-generated uploads — but the foundational principles of the Act, reinforced by judicial creativity and the 2012 amendments, remain fit for purpose. The constitutional basis for this regime lies in Articles 19(1)(a), 300A, and India's international obligations under Berne Convention and TRIPS.

B3. How Copyright Protects Economic Interest and Moral Rights of the Author

Introduction

Copyright serves a dual purpose: (1) Economic protection — ensuring authors can financially benefit

from their creative labour; and (2) Moral protection — safeguarding the author's personality, integrity, and relationship with their work even after it is sold or assigned. Together, these two dimensions recognise the author as both an economic participant in the marketplace and as a human being whose creative identity is embedded in the work.

1. Economic Rights of the Author (Section 14, Copyright Act 1957)

Economic rights give the copyright owner the exclusive right to commercially exploit the work. These rights can be assigned, licensed, or transferred:

Economic Right	Meaning	Example
Reproduction right	Copy/reproduce in any form	Printing copies of a novel
Distribution right	Sell/hire/offer for sale	Selling books at a bookstore
Communication right	Broadcast/stream/perform publicly	Streaming a film on OTT
Adaptation right	Translate/dramatise/arrange	Hindi adaptation of English novel
Rental right	Hire out films/software	DVD rental shops
Translation right	Convert to another language	Translating Telugu poetry to English

ECONOMIC RIGHTS = PROPERTY: These rights are assignable, licensable, inheritable. They can be sold to publishers, producers, record labels. They last for author's life + 60 years in India (Life + 50 under Berne minimum).

2. Moral Rights of the Author (Section 57, Copyright Act 1957)

Moral rights are personal rights that protect the author's honour and reputation regardless of whether they still own the economic rights:

- Right of Paternity (Section 57(1)(a)): Author has the right to CLAIM AUTHORSHIP of the work and prevent others from falsely claiming authorship
- Right of Integrity (Section 57(1)(b)): Author has the right to OBJECT to any distortion, mutilation, modification, or other act in relation to the work that would be prejudicial to the author's honour or reputation

MORAL RIGHTS SURVIVAL RULE: Section 57(3) — Moral rights survive EVEN AFTER ASSIGNMENT of copyright. They vest in the legal heirs of the author after death. They CANNOT be waived or transferred by contract.

3. Key Distinctions — Economic vs Moral Rights

Feature	Economic Rights	Moral Rights
Transferable?	Yes — assigned/licensed	No — inalienable
Waivable?	Yes — by contract	No — cannot be waived
Governed by	Section 14	Section 57
Duration	Life + 60 years	Survive life + vest in heirs
Purpose	Commercial exploitation	Personal honour/reputation
After assignment?	Belong to assignee	Remain with author

4. Landmark Cases

§§ *Amar Nath Sehgal v. Union of India* (2005 Delhi HC) — Plaintiff sculpted a bronze mural for Vigyan Bhawan (Government building). Government later demolished it and stored the fragments carelessly. Court held: (1) Right of integrity under Section 57 violated; (2) The author's moral rights survived even though the copyright in a government commission may vest in the government; (3) Court ordered return of mural fragments and awarded Rs. 5 lakhs as damages for moral rights violation. This is the foundational Indian moral rights case.

§§ *Mannu Bhandari v. Kala Vikas Pictures* (Delhi HC 1987) — Film adaptation of plaintiff's novel made substantial changes that distorted her work. Court upheld right of integrity under Section 57 — author could object even though she had contractually assigned the adaptation rights.

§§ *Phoolan Devi v. Shekhar Kapur* (Delhi HC 1994) — Film 'Bandit Queen' based on plaintiff's life. Court considered right of integrity when the portrayal was claimed to be distorted and harmful to the subject's dignity.

5. Socio-Economic Significance

- Economic rights enable authors to earn a livelihood from their creative work — incentivising investment in time and talent
- Moral rights recognise that a creative work is an extension of the author's personality — not merely a commodity
- Together they attract more creativity into the economy: authors know both their income and their reputation are protected
- Moral rights are particularly important for visual artists, sculptors, and architects whose works are physically altered or destroyed

Conclusion

Copyright's dual protection — economic and moral — reflects the philosophy that a creative work has both commercial value and personal meaning. The Copyright Act, 1957, particularly through Sections 14 and 57, ensures that authors participate in the economic benefits their works generate while retaining a permanent, inalienable bond with their creative expression. Amar Nath Sehgal stands as a testament to the judiciary's recognition that art is not merely property — it is identity. This dual protection is rooted in Articles 19(1)(a) and 21 (dignity) of the Constitution, recognising creativity as both speech and personhood.

🔑 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Strict IRAC format. Time: 15 min each.

C1. Problem: Teacher Photocopies Copyrighted Notes for Students — Infringement?

(Based on Nov 2022 Q16 & Aug/Sep 2024 Q16: A teacher uses copies of notes from a copyrighted source to be used in class for the benefit of students. Does it amount to infringement of copyright?)

I — ISSUE

Whether a teacher's reproduction and distribution of copyrighted material to students for classroom instruction constitutes copyright infringement under the Copyright Act, 1957, or whether it falls within the fair dealing exception under Section 52.

R — RULE

The following provisions govern:

1. Section 51, Copyright Act 1957: Infringement occurs when a person does any act which is the exclusive right of the copyright owner without licence or statutory authority.
2. Section 14(a)(i): Reproduction of a literary work in any material form is the exclusive right of the copyright owner.
3. Section 52(1)(i) — KEY EXCEPTION: 'The reproduction of any work by a teacher or a pupil in the course of instruction' does NOT constitute an infringement of copyright.
4. Section 52(1)(j): Performance of a literary, dramatic, or musical work in the course of educational institution's activities before an audience of teachers, pupils, and parents — not infringement.
5. Section 52(1)(a): Fair dealing with any work for private use including research — not infringement.

■ **CRITICAL EXCEPTION: Section 52(1)(i) — Reproduction by teacher/pupil IN THE COURSE OF INSTRUCTION = NOT infringement. This is a specific, statutory safe harbour for educational use.**

A — APPLICATION

Applying the rules to the facts:

- The person is a TEACHER — satisfies the identity requirement of Section 52(1)(i)
- The use is for classroom instruction — satisfies the 'in the course of instruction' requirement
- The notes are used FOR THE BENEFIT OF STUDENTS in the class — educational/instructional purpose
- Section 52(1)(i) expressly covers reproduction by teacher in the course of instruction

— the teacher's act falls squarely within this exception

HOWEVER — important limitations apply:

- If the teacher reproduces the ENTIRE book and distributes commercially → goes beyond Section 52(1)(i) — likely infringement
- If reproduction is for a specific chapter/portion relevant to the lesson → within the exception
- If copies are sold by the teacher → commercial purpose negates the educational exception
- If used in a private coaching centre (not a recognised educational institution) → may not qualify

Academy of General Education v. B. Malini Mallya (2009 Karnataka HC) — Performance of copyrighted dance in educational institution held to be within Section 52 exception; courts construe educational exceptions generously for bona fide instruction.

C — CONCLUSION

NO — It does NOT amount to copyright infringement IF:

- The teacher reproduces relevant portions (not the entire work) of the copyrighted notes
- The reproduction is genuinely in the course of instruction in an educational institution
- The copies are not sold or used for any commercial purpose

The act is expressly protected under Section 52(1)(i), Copyright Act 1957. However, wholesale reproduction of entire books or commercial distribution by the teacher would cross the line into infringement.

FINAL ANSWER: Section 52(1)(i) — Teacher's reproduction in course of instruction = NOT infringement. Educational purpose is a statutory exception. But reproduction must be proportionate and non-commercial.

C2. Problem: Blog Compiled into Book Without Permission — Infringement?

(Based on July/August 2025 Q14: 'A' writes a blog series and publishes it online. Without permission, 'B' compiles and publishes the content in a book under his own name. 'A' wants to file a suit for copyright infringement. Advise 'A'.)

I — ISSUE

(1) Whether 'A' has copyright in the blog series published online; (2) Whether 'B's compilation and publication of the blog content in a book under his own name, without 'A's permission, amounts to copyright infringement; and (3) What remedies are available to 'A'.

R — RULE

The following legal provisions govern:

1. Section 13(1)(a), Copyright Act 1957: Copyright subsists in original LITERARY WORKS — a

blog constitutes a literary work as it is a written composition expressed in language.

2. Section 2(o): 'Literary work' includes tables and compilations including computer databases — blogs are literary works.

3. Berne Convention, Article 5(2): No formality (registration) required — copyright is automatic on creation.

4. Section 17: First owner of copyright is the AUTHOR — 'A' is the first owner of the blog series.

5. Section 14(a): Reproduction, adaptation, and distribution are exclusive rights of the copyright owner.

6. Section 51: Infringement occurs when a person does without licence what is the exclusive right of the copyright owner.

7. Section 57(1)(a): False claim of authorship violates the author's moral right of paternity.

8. Section 55: Civil remedies — injunction, damages, account of profits, delivery up.

9. Section 63: Criminal offence — imprisonment 6 months to 3 years + fine.

 **KEY RULES:** (1) Online blogs = literary works with automatic copyright (no registration needed). (2) Compiling someone else's work without permission = reproduction + adaptation = infringement. (3) Publishing under own name = additional violation of moral rights (false authorship claim).

A — APPLICATION

Applying the rules to the facts:

- 'A' is the AUTHOR of an original blog series — copyright subsists automatically under Section 13 from the moment of creation/publication
- No registration is needed — Berne principle (adopted in India) confirms automatic protection
- 'B' compiled 'A's' blog content and published it as a book — this is reproduction of a literary work under Section 14(a)(i) = exclusive right of 'A'
- 'B' did this WITHOUT PERMISSION — no licence, no assignment, no statutory exception applies
- 'B' published it UNDER HIS OWN NAME — this is a false claim of authorship violating 'A's' moral right of paternity under Section 57(1)(a)
- No fair dealing exception (Section 52) applies — 'B' is selling commercially, not using for research/criticism/education

☞ Civic Chandran v. Ammini Amma (1996 Kerala HC) — Copyright in creative expressions is automatically protected; commercial exploitation without licence = infringement.

☞ Mannu Bhandari v. Kala Vikas Pictures (Delhi HC 1987) — Adaptation of original literary work without permission and with distortion = infringement + moral rights violation.

C — CONCLUSION

'B' has committed copyright infringement. 'A' should:

- File a CIVIL SUIT under Section 55 seeking: (a) Injunction to stop further publication/sale of the book; (b) Damages for loss suffered; (c) Account of profits earned by 'B'; (d) Delivery up of all copies of the infringing book for destruction

- Assert MORAL RIGHTS violation under Section 57 — 'B's false claim of authorship violates 'A's right of paternity; court can order correction of authorship
- File CRIMINAL COMPLAINT under Section 63 — imprisonment up to 3 years + fine up to Rs. 2 lakhs for knowingly infringing copyright
- Apply for ANTON PILLER ORDER to seize existing stock of infringing books before 'B' destroys them

FINAL ANSWER: Yes — clear copyright infringement under Section 51 + moral rights violation under Section 57. 'A' has strong case for injunction, damages, account of profits (civil) AND criminal prosecution (Section 63). Online blog has automatic copyright — no registration needed.

C3. Problem: ISP Webcasting Live Cricket Scores — Copyright Infringement?

(Based on Nov 2022 Q13: An internet service provider webcasts ball-by-ball live score of a one-day cricket match officially telecast on a TV channel. Does it amount to infringement of copyright?)

I — ISSUE

Whether an internet service provider (ISP) that webcasts ball-by-ball live cricket scores — taken from a TV channel's official broadcast — commits copyright infringement of the broadcasting organisation's rights or of any other copyright under the Copyright Act, 1957.

R — RULE

The following provisions govern:

1. Section 37, Copyright Act 1957: A broadcasting organisation has a 'broadcast reproduction right' — the exclusive right to re-broadcast the broadcast, cause the broadcast to be heard/seen by the public on payment, and make any sound/visual recording of the broadcast. Duration: 25 years from broadcast.
2. Section 14(e): The owner of a sound recording or broadcast has exclusive rights including the right to 'communicate' it to the public.
3. Section 2(ff): 'Communication to the public' means making any work available for being seen/heard or otherwise enjoyed by the public directly or by any means of display or diffusion — this includes webcasting.
4. Section 51: Doing any act that is the exclusive right of the copyright owner without licence = infringement.
5. Facts vs Expression: Pure facts (cricket scores — numbers like 245/6) are NOT copyrightable. But the BROADCAST (commentary, camera angles, graphics, presentation) IS protected under Section 37.

CRUCIAL DISTINCTION: RAW SCORES (facts) = not protected. BROADCAST FEED (the audio-visual presentation of those scores, commentary, live camera) = protected by broadcaster's right under Section 37.

A — APPLICATION

Applying the rules to the facts — TWO scenarios must be distinguished:

Scenario A: ISP uses the actual broadcast feed / video stream

- If ISP is taking the actual TV channel's broadcast signal and re-streaming it on the internet → this is RE-BROADCASTING the broadcast
- This directly violates Section 37 (broadcast reproduction right) of the TV channel
- Also violates right of 'communication to the public' under Section 14
- RESULT: CLEAR INFRINGEMENT of the broadcaster's right

Scenario B: ISP only provides text-based ball-by-ball score updates (numbers)

- Pure factual data — '3rd ball of 5th over, 4 runs scored by Kohli, total 245/6' — these are FACTS
- Facts are not copyrightable (idea-expression dichotomy; Eastern Book Co. principle)
- The arrangement/selection of facts may attract copyright only if sufficiently original
- RESULT: Mere text score updates likely NOT infringement — but if copied from TV graphic overlay verbatim, could be infringement

⚖️ *Star India Pvt Ltd v. Piyush Agarwal (Delhi HC 2013)* — Court held that ball-by-ball data can be protected if sufficiently organised; broadcaster's exclusive rights in live broadcast signal are protected under Section 37.

⚖️ *Board of Control for Cricket in India v. Arvee Enterprises (Delhi HC 2014)* — BCCI's rights in live cricket events; exclusive telecast rights create protectable broadcast rights.

C — CONCLUSION

It DEPENDS on the nature of the ISP's webcast:

- If ISP re-streams the actual broadcast (audio-visual feed) → YES, infringement of Section 37 broadcast reproduction right
- If ISP provides only raw text score data → likely NOT infringement (facts not protected)
- If ISP systematically scrapes and reproduces the organised data presentation from the broadcast → possibly infringement of compilation copyright or broadcast right

🟡 **FINAL ANSWER:** Re-broadcasting the TV channel's live feed on internet = YES, infringement under Section 37. Mere text-based score updates = likely NO infringement (unprotectable facts). The broadcast (commentary, graphics, camera) is protected; the raw score data is not.

⚡ QUICK REVISION SHEET — UNIT III

Key Section Numbers — Copyright Act 1957

Section	Content
Section 13	Subject matter — works in which copyright subsists
Section 14	Meaning of copyright (exclusive economic rights)
Section 17	First owner of copyright = author (employer if in employment)
Section 18	Assignment of copyright
Section 19	Assignment must be in writing Default period: 5 years Default territory: India
Section 19A	Assignment lapses if assignee fails to exploit within 1 year
Section 30	Voluntary licence by copyright owner
Section 31	Compulsory licence (Copyright Board/IPAB)
Section 31C	Cover version licence — after 5 years of original sound recording
Section 31D	Statutory licence for broadcasting (2012 amendment)
Section 33	Registration of copyright societies (CMOs — IPRS, PPL)
Section 37	Broadcast reproduction right — 25 years
Section 38/38A	Performers' rights — 50 years from performance
Section 51	Infringement of copyright
Section 52	Acts NOT constituting infringement (fair dealing list)
Section 52(1)(i)	Reproduction by teacher in course of instruction — NOT infringement
Section 55	Civil remedies — injunction, damages, accounts, delivery up
Section 57	Moral rights — paternity + integrity (inalienable)
Section 63	Criminal offence — 6 months to 3 years + Rs.50,000 to Rs.2,00,000 fine
Section 64	Police seizure of infringing copies without warrant

Duration of Rights

Type of Work	Term
Literary/Dramatic/Musical/Artistic (published)	Life of author + 60 years
Anonymous / Pseudonymous works	60 years from publication
Government / official works	60 years from publication
Cinematograph films	60 years from publication
Sound recordings (phonograms)	60 years from publication
Photographs	60 years from publication

Broadcast reproduction right	25 years from broadcast
Performers' rights	50 years from performance
Berne Convention minimum	Life + 50 years

🔥 Top Cases — One-Liner

- R.G. Anand v. Delux Films (1978 SC): Idea not protected; expression is; viewer-feels-copy test
- Amar Nath Sehgal v. UOI (2005 Delhi HC): Moral rights violated when govt demolished sculpture; Rs.5L damages
- Eastern Book Co. v. D.B. Modak (2008 SC): Minimal creativity in headnotes = protectable; bare facts = not
- Baker v. Selden (1879 US SC): Accounting system idea not protected; only literary description protected
- Mannu Bhandari v. Kala Vikas (Delhi HC 1987): Distorted film adaptation = moral rights infringement (integrity)
- Tips Industries v. Wynk Music (Bombay HC 2019): Section 31D broadcasting licence ≠ on-demand streaming
- Anton Piller KG v. Manufacturing Processes (1976 UK): Origin of ex parte search/seizure order in IP
- IPRS v. Eastern India Motion Picture Assoc. (1977 SC): IPRS can collect royalties for public performance rights

🧠 Memory Mnemonics

■ **ECONOMIC RIGHTS (Section 14): 'RCDART'** = Reproduction, Communication to public, Distribution, Adaptation, Rental, Translation

■ **MORAL RIGHTS (Section 57): 'PI'** = Paternity (claim authorship) + Integrity (object to distortion). Both INALIENABLE.

■ **INFRINGEMENT TEST: '3Cs'** = Copyright valid, Copying proved, Copied Expression (not idea)

■ **CIVIL REMEDIES (Section 55): 'IDAD'** = Injunction, Damages, Account of profits, Delivery up

■ **FAIR DEALING PURPOSES (Section 52): 'PRICE'** = Private use/research, Reporting news, Instruction (teaching), Criticism/review, Educational performance

■ **DURATION RULE:** Author's work = Life+60. Everything else (films, recordings, photos, broadcasts) = 60/50/25 years from publication/broadcast.

⚠️ Exam TRAP Questions

- ▶ TRAP: 'Copyright requires registration in India' → NO. Automatic from creation (Berne principle, Section 13). Registration is optional (Section 44) — useful as evidence, not mandatory.

- ▶ TRAP: 'Moral rights can be waived by contract' → NO. Section 57 — moral rights are INALIENABLE. Any contract clause purporting to waive moral rights is unenforceable.
- ▶ TRAP: 'Fair dealing in India allows any non-commercial use' → NO. Section 52 is a CLOSED LIST — only specified purposes (private use, research, education, criticism, news). Not all non-commercial uses qualify.
- ▶ TRAP: 'Assignment of copyright can be oral' → NO. Section 19(1) — assignment must be in WRITING, signed by assignor.
- ▶ TRAP: 'Facts/data are protected by copyright' → NO. Facts, ideas, data, historical events are NOT copyrightable. Only original EXPRESSION of facts is protected.
- ▶ TRAP: 'Anton Piller Order is a criminal remedy' → NO. It is a CIVIL remedy — search and seizure ordered by civil court without notice to defendant.
- ▶ TRAP: 'Copyright in India lasts Life + 70 years' → NO. India gives Life + 60. USA gives Life + 70. Berne minimum is Life + 50.
- ▶ TRAP: 'Section 31D covers internet streaming' → NO. Tips v. Wynk held Section 31D covers only radio/TV broadcast, NOT on-demand internet streaming.

Star Ratings Summary — Unit III

Topic	Part	Rating
Copyright Infringement — Criteria, Exceptions, Remedies	B	★★★★★
Idea-Expression Dichotomy	B	★★★★★
How Copyright Protects Economic & Moral Rights	B	★★★★★
Teacher using copyrighted notes (Problem)	C	★★★★★
Blog compiled into book (Problem)	C	★★★★★
Copyright Infringement (short note)	A	★★★★★
Anton Piller Order	A	★★★★★
Fair Use / Fair Dealing	A	★★★★★
Rights of Authors and Owners	A	★★★★★
Cricket webcast (Problem)	C	★★★★★
Assignment and Licensing	A	★★★★
Collective Management / CMOs	A	★★★★
Neighbouring Rights	A	★★★★

— END OF UNIT III —

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